

25STCV18665 25STCV18665

County: los-angeles

Division: Civil Law and Motion

Department: 517

Hearing date: 2026-08-04

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Case Number: 25STCV18665 Hearing Date: August 4, 2026 Dept: 517

Defendant Jaguar Land Rover North America's ("Jaguar") demurrer to the claims for breach of the express warranty under the Song-Beverly Consumer Warranty Act ("the SBA") in Plaintiff Gloria Blatti's ("Blatti")'s Complaint is sustained with leave to amend. These claims are barred by the statute of limitations and statute and repose that were added to the SBA through amendments to it that are codified in Code of Civil Procedure section 871.21. Application of the amendments to this case does not have an impermissible retroactive effect.

Jaguar's demurrer to Blatti's claim for breach of the implied warranty under the SBA is barred by the four-year statute of limitations on such claims.

Jaguar's demurrer to Blatti's claim for fraudulent inducement-concealment is overruled. The economic loss rule does not apply to such claims. Further, the allegations in Blatti's Complaint are sufficient to support her fraud claim. Jaguar's motion to strike the prayer for an award of punitive damages on the fraud claim and the allegations supporting that prayer is denied.

The demurrer of Defendant Jaguar Land Rover Woodand Hills ("the Dealer") to Blatti's negligence claim is sustained with leave to amend. The allegations in the Complaint fail to show how Blatti was damaged by any negligence on the part of the Dealer.

The Court can at the hearing on August 4 provide explanations of the bases for the foregoing rulings.